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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF DEFENCE

NOTIFICATION

Rawalpindi, the 13th August, 2015

S.R.O. 802(I)/2015.—In exercise of the powers conferred by clause (23) of section 282 of the Cantonments Act, 1924 (II of 1924) read with section 283 thereof, the Cantonment Board, Clifton with previous sanction of Federal Government hereby publish following bye-laws for regulation of the position, size, shape or style of the name boards and sign-boards in the Cantonment Board, Clifton, for general information, namely:—

1. **Short title and commencement.**—(1) These bye-laws may be called the Clifton Cantonment (Sign-boards) Bye-laws 2015.

(2) They shall come into force at once.

2. **Definitions.**—In these bye-laws, unless there is anything repugnant in the subject or context;

(2941)

- (a) **“Act”** means the Cantonments Act 1924 (II of 1924);
- (b) **“assessment of sign-board”** means on site visit, measurements of size of a sign-board, frontage, category of sign-board and other calculations required under these bye-laws.
- (c) **“contractor”** means a licensee who is authorized to collect shop sign-board tax and window graphy and vinyl painting;
- (d) **“Director”** means the Director Military Lands and Cantonment, Karachi Region Karachi;
- (e) **“frontage”** means the width of the shop on either side;
- (f) **“permission”** means approval of application for erection, fixation or display of sign-boards on shop in the manner granted under these bye-laws;
- (g) **“shop”** means a building or part of a building where goods or services are offered for sale or display or any office thereof established for the management or administration of the given purpose;
- (h) **“Sign-board”** means a Sign-board, displaying the name or logo of business or product or name of the shop displayed on a shop or office or property which also include single painting and window graphy used for promotion of business or product ; and
- (i) **“vinyl painting and window graphy”** include Pictures, images, drawings, stickers used to publicize logo or business of a shop or graphs used as decoration or making everything more distinctive and attractive for the customers or any other display material not considered as hoarding and charged accordingly;

3. **Permission to display shop sign-boards.**—(1) No person shall erect, exhibit, fix, retain or display or cause to be erected, exhibited, fixed, retained or displayed any sign-board on any shop or office or property, in any manner, without prior permission of the Executive Officer.

(2) Every person desiring to erect, exhibit, fix, retain or display sign-board shall, prior to fifteen days of display of such sing-board, make an application to the Executive Officer.

(3) The application under sub-bye-law (2) shall include specification of size and frontage of the sign-board, the type and title of the shop or office or property.

(4) Permission to the application, having made application under sub-bye-law (1), may be granted if deemed appropriate from municipal point of view subject to one-time payment of sign-board registration fee of one thousand rupees and fulfillment of other conditions under these bye-laws.

(5) The grant or, as the case may be, refusal of the permission under sub-bye-law (4) may be intimated to the applicant, at the earliest, but not later than fifteen days from the date of application.

(6) Permission under sub-bye-law (4) will be granted after assessment of sign-board is made by a person authorized by the Executive Officer.

(7) The permission shall indicate assessed taxable amount, size of the sign-board and its positioning as approved by the Executive Officer.

(8) Tax on a sign-board shall be chargeable on annual basis.

(9) For any change in size, placement etc. in the permitted sign-board the applicant shall be required to seek permission from the Executive Officer, provided that no further registration fee shall be chargeable for the permitted change.

4. Nothing in these bye-laws shall apply to sign-boards displayed or exhibited by any department of the Federal or Provincial Government or by armed forces or by judicial authorities or related to any service in a mosque, church or temple.

5. **Tax on Sign-boards.**—(1) Subject to these bye-laws, there shall be charged and collected a tax specified in column (4) of the Table below in respect of the sign-board of the size specified in column (3) of that table displayed on the shop, office or property having frontage specified in column (2) of the said table, namely:—

TABLE

S. No.	Frontage	Size of sign-board in feet	Amount of tax per annum per ft.
(1)	(2)	(3)	(4)
1.	up to 8 feet	8' X 2'	Rs. 100/-

S. No.	Frontage	Size of sign-board in feet	Amount of tax per annum per ft.
(1)	(2)	(3)	(4)
2.	Above 8 to 12 feet	12' X 2-1/2'	Rs. 300/-
3.	Above 12 to 20 feet	20' X 3'	Rs. 500/-
4.	Over 20 feet	Frontage X 3-1/2'	Rs. 800/.
5.	Vinyl Painting and window graphy		Rs. 400/-

(2) In respect of additional sign-board for the same shop, office or property, double the rate of tax under sub-bye-law (1) shall be changed and collected.

6. **Withdrawal of permission.**—The permission granted under these bye-laws may be withdrawn by the Executive Officer at any stage in the following instances, namely:—

- (a) violation of terms and condition of the permission;
- (b) changes made in size and structure of a sign-board without prior permission; and
- (c) in the interest of public order and prevention of public nuisance or municipal cluttering of the sign-board.

7. **Power to refuse permission to display a sign-board.**—(1) The Board shall have power to refuse permission or alter size, location, structure and number of sign-boards or any adjustment at site.

(2) The Board may also permission on the ground that contents or the manner of display of a sign-board are indecent or otherwise offensive to good taste, public interest, sentiments, politically or religiously offensive or undesirable.

8. **Appeal.**—An appeal against the assessment of, or against the refusal to refined, tax under these bye-laws, may within thirty days of such assessment or, as the case may be, refusal, be made to the Director for disposal in accordance with section 84 of the Act.

9. **Period of Taxation.**—(1) The tax on a sign-board shall be chargeable and collected for a financial year from the date of permission or mounting of the sign-Board, whichever is earlier.

(2) The tax under these bye-laws shall be levied on annual basis and payable within thirty days of issuance of the tax invoice.

(3) In case of failure to pay the tax under these bye-laws, the defaulter shall be liable for action under section 92 to 96 of the Act without prejudice to any other action under the Act.

10. **Removal of sign-boards.**—Where the permission has been refused, cancelled or withdrawn under these bye-laws or the owner is in default of payment of the tax or the sign-board has been installed without permission in writing, the Executive Officer shall cause the unauthorized sign-boards to be removed, without notice, at the cost of the offender.

11. **Auction of collection rights of tax on sign-boards.**—The Board for its administrative convenience may put to open auction the collection rights of the tax on sign-boards, as a whole or in part thereof levied under these bye-laws. The contractor as authorized by the Board shall bear all the rights and privileges on behalf of the Board in collection of the tax under these bye-laws as per terms and conditions of the Board.

12. **Penalty.**—Any person who contravenes any of the provisions of these bye-laws shall be punishable in accordance with section 283 of the Act.

13. **Method of recovery.**—Notwithstanding anything contained in these bye-laws, arrears of any tax, cost and fine may be recovered together with the cost of recovery through the method provided for in the Act.

14. **Repeal.**—Subject to Article 24 of the Pakistan Defence Officers Housing Authority Order, 1980 (P.O. No. 7 of 1980), the Federal Government's Notification No. S.R.O. 571/66, dated the 22nd April, 1966 and such other instruments relating to all matters covered under these bye-laws, to the extent of its application to the Clifton Cantonment, are hereby repealed.

[No. 38/1/P&MA/ML&C/2015/4/2/D-6(A-VI)/2015].

AZEEM SARWAR,
Section Officer.

